

April 15, 2026

Dear Ms. Osterlund and Ms. Hlushak,

I am writing further to your April 13, 2026 release of records in response to FOI request (File No. 2025-078).

Thank you for providing the materials associated with the revised scope. The request was narrowed in good faith to address concerns regarding cost, and payment was ultimately made in order to obtain access to the records.

The revised scope of FOI Request 2025-078 (received and acknowledged by the Deputy Corporate Officer) explicitly identified financial evaluations, cost comparisons, and rationale for the inclusion of Spur Valley, including emails. The records disclosed do not contain documentation that substantively reflects those categories, particularly in relation to comparative analysis or clearly documented rationale supporting the service area boundary.

However, following a detailed review of the records, there are material concerns regarding both the completeness of the response and the absence of key documentation.

Your letter states that “all responsive records” within the revised scope have been provided. Based on the content of the records received, this raises several material gaps in the documentary record.

First, there is no documented rationale explaining the inclusion of Spur Valley within the proposed service area. While Spur Valley is referenced in the documents via communications and planning materials, there is no staff report, briefing note, analysis, or decision document that explains why this area was included, what criteria were applied, or what alternatives were considered.

Second, while the records include mapping of the proposed service area (Schedule A), there is no supporting documentation confirming the Canada Post service boundary rationale that was presented to residents as the basis for inclusion. The records contain no correspondence, source mapping, or formal confirmation from Canada Post establishing that Spur Valley falls within an Edgewater service area or explaining how the service boundary was derived from those purported Canada Post boundaries.

Third, the records do not include any financial or policy analysis specific to Spur Valley, including cost allocation, benefit assessment, or evaluation of taxation impacts for that area.

Fourth, the records suggest that service area boundaries were determined through administrative or mapping exercises, rather than through documented policy analysis or structured evaluation. There is no evidence of a decision-making framework, evaluation criteria, or formal recommendation supporting the boundary determination.

In addition, there appears to be a discrepancy between explanations provided to residents and the records disclosed. Correspondence to residents indicates that inclusion in the service area was based on defined service boundaries and usage patterns. However, the records provided do not contain documentation substantiating these statements, nor do they reflect analysis or evidence supporting that rationale.

Importantly, the records that have been disclosed — even within the narrowed scope — reveal substantive gaps in documented rationale and supporting analysis. This information was not previously available to the public and provides meaningful insight into how decisions affecting taxation and service boundaries were made.

Further clarification is also required regarding the governance and approval process associated with the establishment of the service area.

The proposed service area — including the inclusion of Spur Valley — was embedded within Bylaw No. 3379, which would have enabled taxation if approved through the assent vote. As such, this required formal consideration and approval by the RDEK Board.

Bylaw No. 3379 was advanced through the full legislative process, including Inspector approval and Board readings, and presented to electors in completed form. While final adoption was contingent on the outcome of the assent vote, the bylaw represents a fully developed service and taxation framework that required supporting analysis prior to being brought forward for approval.

However, the records provided do not include any documentation of what was presented to the Board in relation to:

- the definition of the service area boundaries
- the inclusion of Spur Valley within those boundaries
- the rationale or justification for that inclusion
- the financial implications associated with the defined service area

Nor do the records clearly identify the specific materials, reports, or recommendations that formed the basis of the Board's decision-making, or the precise scope of what the Board approved when advancing the bylaw.

The Hanworth Consulting report appears to have been prepared to assess the feasibility of a proposed approach rather than to provide an independent evaluation of multiple alternatives. The report supports development of a specific proposal but does not include a structured comparison of options, cost alternatives, or a comprehensive business case analysis which would typically be expected in a comprehensive business case supporting a taxation-based service.

Email correspondence from senior staff (including the Chief Administrative Officer) indicates that the service area boundary was based on guidance provided by Canada Post. However, the records disclosed do not substantiate these statements and do not reflect analysis supporting that rationale. This contributes to a broader discrepancy between the explanations provided and the documentary record, raising questions relating to transparency and governance.

In addition, the public information materials presented to Edgewater residents (including some still online on the RDEK website) state that several options were explored and that the proposed approach represents the most cost-effective and appropriate solution. However, those materials present only a single option and do not include any comparative analysis, alternative scenarios, or supporting documentation that would substantiate that conclusion.

While detailed cost estimates and taxation projections for the proposed option are provided in public documents, there is no documentation released demonstrating how this option was evaluated against

alternatives, or how the defined service area boundary relates to cost optimization, service need, or fairness across affected taxpayers. Given that the proposed service would have enabled taxation across the defined service area, the absence of comparative analysis and boundary rationale is particularly significant in understanding how a taxation decision affecting the community was developed and advanced.

The public explanation presents the service area as the result of a *defined and analytical process*. The documentary record does not reflect that process.

From a governance perspective, the establishment of a service area embedded within bylaws that could have enabled taxation would reasonably be expected to be supported by a clear and traceable documentary record. This would reasonably be expected to include:

- communications from elected officials or direction to staff regarding service area considerations
- communications from elected officials to proponents of the service and to Spur Valley residents prior to the vote
- requests for analysis or evaluation of boundary options
- input into boundary decisions or service design
- documentation reflecting community considerations or impacts

The absence of records of this nature within the materials provided raises further questions as to whether all relevant records have been identified and disclosed, or whether the decision-making process has been fully documented.

Given that this service area was embedded in a bylaw that would have enabled taxation, a clear and traceable record of the analysis, recommendations, and information relied upon by the Board would reasonably be expected.

Further, the nature of the information now disclosed indicates that additional responsive records may exist beyond those captured in the narrowed request, particularly in relation to:

- the origin and development of the service area boundary
- internal discussions or recommendations regarding inclusion within the service area
- any analysis or justification relied upon in establishing the boundary
- any correspondence or documentation supporting the service area assumptions

Given that your office has confirmed that all responsive records within the revised scope have been provided, clarification is requested on the following:

1. Whether any records exist, outside of the revised scope, that document the rationale or decision-making process for establishing the service area;
2. Whether any records exist that support or substantiate the service boundary explanation provided to residents;
3. Whether any staff reports, briefing materials, or internal analyses were prepared that address service area determination, boundary selection, or associated financial considerations;

4. What specific records were presented to the RDEK Board in support of the service area boundaries and associated bylaws, and whether any materials addressing boundary inclusion were provided to the Board;

5. If such records exist, whether they were excluded from the revised scope and, if so, on what basis.

If no such records exist, I ask that this be *confirmed explicitly*.

This will include records of communications, briefing materials, and documentation reflecting how Board members considered and evaluated the proposed service area in advance of, and in relation to, the assent vote and associated bylaws.

While questions have been raised regarding specific boundary inclusions, the issue extends more broadly to all affected taxpayers. This includes residents of Edgewater who would have borne the primary financial impact of the proposed service. Understanding how the service area was defined, how financial considerations were evaluated, and what information supported the bylaw is essential to ensuring transparency and accountability in decisions that could have resulted in increased taxation across the community.

Depending on the response, further steps may be taken, including submission of an additional request or seeking an additional review under section 52 of the Act regarding the completeness of the response. In addition, given the absence of documented rationale and Board-level materials within the records provided, further access to records relating to the decision-making process at the Board level may be pursued.

This matter raises important questions regarding transparency, accountability, and the documentation of decision-making processes associated with taxation-enabled services.

Thank you for your attention. I look forward to your clarification.

Sincerely,

Paul Bzeta

A handwritten signature in black ink, appearing to read 'Paul Bzeta', with a stylized, overlapping loop structure.

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